

Court No. - 39

Case :- WRIT - C No. - 8294 of 2021

Petitioner :- Ram Chandra Yadav

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Saurabh Basu, Haseen Ahmad

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Deepak Verma, J.

Sri Narendra Kumar Tiwari learned counsel has put in appearance on behalf of the respondents.

The demand notice dated 30.12.2020 and the notice dated 12.10.2020 are being challenged on the ground that the application moved by the petitioner for enhancement of load from 1 K.W. to 2 K.W. has not been considered by the department and the allegations in the notice dated 12.10.2020 regarding use of domestic connection for commercial purposes are false.

Attention of the Court is invited to clause 7.10 of the U.P. Electricity Supply Code' 2005 which provides that in respect of the matters mentioned in clauses 7.7.1 to 7.7.5 and those covered under the said regulation, can be addressed by the Consumer Grievance Redressal Forum constituted in accordance with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, in case, the person aggrieved by the licensee approaches Forum. Clause 7.7.4 deals with the reduction/enhancement of the load and cast liability on the licensee to deal with such application within a period of 30 days.

In view thereof, without entering into the merits of the case, the writ petition is **disposed of** relegating the petitioner to approach the Consumer Grievance Redressal Forum in accordance with clause 7.10 (ii) of the U.P. Electricity Supply Code' 2005.

In case, the petitioner approaches the Forum within a period of three weeks alongwith copy of this order by moving an appropriate representation, the Forum shall consider all the grievances of the petitioner in accordance with law.

The recovery proceedings initiated against the petitioner shall be subject to the fresh decision to be taken by the Forum.

Order Date :- 12.3.2021

Himanshu